***For Educational purpose only***

# A guide to answer a legal question

## Facts

Mr. A, who has domicile in Nonthaburi Province, is driving his car from Nonthaburi Province to Ratchaburi Province for vacation. When Mr. A arrives Nakhon Pathom Province, he parks his car in front of the Pumpkin restaurant and have lunch at the restaurant. Later, Mr. B, who has domicile in Ratchaburi Province, accidentally crashes his car into Mr. A's car. Since Mr. B has no car insurance, he gives his phone number to Mr. A for the damages settlement in the near future. Three days later, Mr. A calls Mr. B and request Mr. B to pay damages in the amount of 320,000 baht but Mr. B denies to pay any damages to Mr. A. With this reason, Mr. A would like to file a lawsuit for damages against Mr. B.

## Question

Which Provincial court that Mr. A can file a lawsuit for damages against Mr. B?

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## Answer

**1. Law/Rule**

Under the Civil Procedure Code Section 4(1)

Unless otherwise provided by law.

(1) The plaint shall be submitted to the Court within the territorial jurisdiction of which the defendant is domiciled or to the Court within the territorial jurisdiction of which the cause of action arose, whether the defendant shall have domicile within the Kingdom or not.

**2. Analysis**

From the facts, Mr. B, who has domicile in Ratchaburi Province, crashes his car to Mr. A's car which is parked in front of Pumpkin restaurant located in Nakhon Pathom Province. Since Mr. B has no car insurance and denies to pay damages for the accident to Mr. A, Mr. A has two choices for filing a lawsuit for damages against Mr. B under the Civil Procedure Code Section 4(1) as follows:

First, Mr. A can file a lawsuit for damages against Mr. B in the Court within the territorial jurisdiction of which Mr. B is domiciled. In this case, this will be the Ratchaburi Provincial Court. or

Second, Mr. A can file a lawsuit for damages against Mr. B in the Court within the territorial jurisdiction of which the cause of action arose, whether the defendant shall have domicile within the Kingdom or not. In this case, this will be the Nakhon Pathom Provincial Court.

**3. Conclusion**

In conclusion, Mr. A can file a lawsuit for damages against Mr. B in Ratchaburi Provincial Court or Nakhon Pathom Provincial Court.

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